

While the Court is not making any final determination at this stage, Plaintiff has articulated a *prima facie* basis for the alleged liability on the part of Laurie Rene Klein that would allow a claim to be asserted against that person under Code of Civil Procedure section 377.40. Importantly, Section 377.40 allows for actions to be prosecuted against a successor in interest **“to the extent provided by statute.”**

Among other things, statutory provisions provide for liability on the decedent’s former spouse in certain circumstances. See e.g. Probate § 13550 (“upon the death of a married person, the surviving spouse is personally liable for the debts of the deceased spouse chargeable against the property described in Section 13551 to the extent provided in Section 13551”). Or, in certain circumstances, liability may premised on transfer of the decedent’s property. See e.g. Prob. Code § 13109(a) (transferee is personally liable, to the extent provided in this section for the unsecured debts of the decedent).

Disposition

The Court finds and orders as follows:

1. The Motion to Substitute Successor-in-Interest as Defendant is GRANTED.
2. A proposed form of order was lodged with the Court which the Court shall execute and enter.

15. 9:00 AM CASE NUMBER: N23-1456

CASE NAME: CURIA GLOBAL, INC. v. BRYOLOGYX, INC.

***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE RE RICHARD H. TILGHMAN IV**

FILED BY: CURIA GLOBAL, INC.

TENTATIVE RULING:

On October 7, 2025, petitioner Curia Global, Inc. (“Petitioner”) filed an application for leave for attorney Richard H. Tilghman (“Counsel”) to appear on its behalf *pro hac vice* in this matter (the “Pro Hac Vice Application”). The Pro Hac Vice Application was set for hearing on February 23, 2026. The motion is unopposed.

Analysis

Rule 9.40 of the California Rules of Court (“CRC”) sets forth the matters that must be addressed in an application to appear *pro hac vice* in a particular cause pending before the Court:

- (1) The applicant's residence and office address;
- (2) The courts to which the applicant has been admitted to practice and the dates of admission;
- (3) That the applicant is a licensee in good standing in those courts;
- (4) That the applicant is not currently suspended or disbarred in any court;
- (5) The title of each court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and
- (6) The name, address, and telephone number of the active licensee of the State Bar who is attorney of record.

CRC 9.40 (d).

Counsel’s supporting declaration sets forth Counsel’s background and addresses each of the

enumerated requirements. See Counsel’s Declaration filed October 7, 2025, ¶12 *et seq.*

Disposition

The Court finds and rules as follows:

1. The Pro Hac Vice Application is GRANTED.
2. A proposed form of order was lodged with the Court which the Court shall execute and enter.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C24-00689
CASE NAME: SHANIEA RODGERS VS. DOES 1-25
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF SHANIEA RODGERS'S FURTHER**
RESPONSES TO FORM INTERROGATORIES, SET ONE
FILED BY: DIANDA MANAGING PARTNER II, LLC
TENTATIVE RULING:

Defendant Dianda Managing Partner II, LLC (“Defendant”) filed three separate discovery motions on September 16, 2025 to compel further responses to discovery requests propounded upon plaintiff Shaniea Rodgers (“Plaintiff”). Collectively, these motions are referred to herein as the “Motions to Compel Further Responses.” The Motions to Compel Further Responses were set for hearing on February 23, 2026. The motions are opposed.

Background

The discovery requests at issue in the Motions to Compel Further Responses (collectively, the “Discovery Requests”) are the following:

1. Defendant’s Requests for Production of Documents, Set One (the “**RPDs**”);
2. Defendant’s Form Interrogatories—General, Set One (the “**FROGs**”); and
3. Defendant’s Requests for Admissions, Set One (the “**RFAs**”).

An Opposition paper was filed on February 9, 2026. Reply papers were filed February 13, 2026, including a set of Evidentiary Objections (the “Objections”).

Objections

Objection No. 1. Defendant objects to Exhibit A to the Opposition. Exhibit A appears to be a set of further responses to the RFAs, **FROGs** and **RPDs** dated February 1, 2026, January 30, 2026, and February 1, 2026, respectively, followed by a series of medical and other records. Defendant’s “Legal Relevance” and Evidence Code section 352 objections are **OVERRULED**. Defendant’s “Lacks Foundation” objection is **SUSTAINED**. The subject exhibit was not attached to any declaration executed under penalty of perjury setting forth any foundation for the proffered exhibit. Rather, it was merely attached as an exhibit to a brief. That is not a proper foundation for the receipt of evidence relative to a law and motion matter. See Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) (“Weil & Brown”) § 9:53a (writings offered in evidence on law and motion matter must be authenticated, typically by filed declarations).

Objection No. 2. Defendant objects to Exhibit B to the Opposition. Exhibit B appears to be an email